Crew management services agreement – CrewLink Maritime

Parties

CrewLink Maritime Ltd and Azur Marine Services S.A.M. (together the "parties").

Recitals

Azur Marine Services S.A.M. manages yachts based in Monaco and purchases crew services for them on a regular basis.

CrewLink Maritime Ltd supplies crew services to yachts in the Monaco area and wishes to be a listed supplier.

1. Scope

Recruitment, pre-employment checks, travel arrangements and visa processing of crew members for the vessels managed by Azur Marine Services.

2. Recruitment

CrewLink presents at least two candidates per position, with verified certificates (STCW), references and medical fitness certificates (ENG1 or equivalent). A placement fee is due only when the candidate joins the vessel.

3. Replacement guarantee

If a placed crew member leaves within 60 days of joining, CrewLink presents a replacement free of charge.

4. Definitions and interpretation

In this Agreement, unless the context otherwise requires: "Agreement" means this agreement and its schedules; "Business Day" means a day other than a Saturday, Sunday or public holiday in the Principality of Monaco; "Confidential Information" means any information disclosed by one party to the other in connection with this Agreement, whether before or after its signature; "Vessel" means any yacht under the management of Azur Marine Services S.A.M. for which Services or Goods are ordered under this Agreement.

Headings are for convenience only. References to clauses and schedules are to clauses of and schedules to this Agreement. Words in the singular include the plural and vice versa. Where there is a conflict between the body of this Agreement and a schedule, the body of this Agreement prevails.

5. Term

This Agreement takes effect on 01/04/2024 and continues for an initial period of two years. It is then renewed automatically for successive periods of twelve months unless either party gives written notice of non-renewal at least three months before the end of the current period.

6. Orders and documentation

Each supply under this Agreement is the subject of a purchase order issued by Azur Marine Services S.A.M. in accordance with its procurement policy PRC-FIN-04, except where this Agreement expressly provides otherwise. A purchase order quotes the vessel, the quantities, the prices and the delivery date.

Each delivery is accompanied by a delivery note, and each service by a service report, signed on board by the Master, the Chief Engineer or their delegate. Only the quantities recorded as received on the delivery note may be invoiced.

7. Invoicing

CrewLink Maritime Ltd issues one invoice per purchase order or per delivery, addressed to accounts.payable@azurmarine.example, stating the purchase order number, the delivery note or service report number, the vessel, and every mention required by the applicable VAT legislation.

Invoices that do not comply with this clause are returned and are not considered received for the purpose of calculating the payment term.

8. Payment

Invoices are payable within 30 days of the invoice date. VAT is accounted for by the customer under the reverse-charge mechanism.

9. Bank details

Payments are made exclusively to the bank account stated in Schedule 2. Any change of bank details is notified by a letter signed by an authorised representative of CrewLink Maritime Ltd and is effective only after confirmation by telephone by Azur Marine Services S.A.M. on the number stated in Schedule 2. Azur Marine Services S.A.M. is not liable for any payment made in good faith to the account stated in Schedule 2.

10. Warranties

CrewLink Maritime Ltd warrants that it holds all licences and approvals required to perform this Agreement, that its personnel are qualified and that the Goods and Services comply with the applicable flag, class and international requirements, including SOLAS and MARPOL where relevant.

CrewLink Maritime Ltd remedies at its own cost any defect notified within twelve months of delivery or completion.

11. Liability

Except in the case of fraud, gross negligence, wilful misconduct, death or personal injury, the aggregate liability of each party under this Agreement in any contract year is limited to the total amount invoiced under this Agreement during the previous twelve months. Neither party is liable for loss of profit, loss of charter, loss of use of a vessel or any indirect loss.

12. Insurance

CrewLink Maritime Ltd maintains, with reputable insurers, public and product liability insurance with a limit of not less than EUR 2,000,000 per occurrence, and employer's liability insurance as required by law, and provides certificates on request.

13. Confidentiality

Each party keeps the other party's Confidential Information confidential and uses it only for the purpose of this Agreement. Information on the vessels, their owners, guests, itineraries and crew is Confidential Information. This obligation survives termination for five years.

14. Data protection

Each party processes personal data received under this Agreement in accordance with Monegasque Law No. 1.565 of 3 December 2024 on the protection of personal data and, where applicable, Regulation (EU) 2016/679, only for the purpose of this Agreement and with appropriate security measures.

15. Anti-bribery and sanctions

Each party complies with applicable anti-corruption laws and with the sanctions regimes of the Principality of Monaco, the United Nations and the European Union. Breach of this clause is a material breach.

16. Subcontracting

CrewLink Maritime Ltd may not subcontract all or part of its obligations without the prior written consent of Azur Marine Services S.A.M., and remains liable for its subcontractors.

17. Audit

Azur Marine Services S.A.M. and its auditors may, on fifteen Business Days' notice and no more than once a year, audit the records of CrewLink Maritime Ltd relating to the prices and quantities invoiced under this Agreement.

18. Force majeure

Neither party is liable for a failure caused by an event beyond its reasonable control, provided it notifies the other party promptly and uses reasonable efforts to mitigate its effects. If the event lasts more than sixty days, either party may terminate this Agreement by written notice.

19. Termination

Either party may terminate this Agreement by written notice with immediate effect if the other party commits a material breach that is not remedied within thirty days of a notice requiring it to do so, or becomes insolvent.

Termination does not affect accrued rights. Purchase orders issued before termination are completed under the terms of this Agreement unless Azur Marine Services S.A.M. cancels them in writing.

20. Notices

Notices are given in writing to the addresses stated in Schedule 2, by registered letter or by e-mail with confirmation of receipt. Operational communications may be made by e-mail between the contacts listed in Schedule 2.

21. Assignment

Neither party may assign this Agreement without the prior written consent of the other, except that Azur Marine Services S.A.M. may assign it to an entity of the Azur Yachting group.

22. Entire agreement, variation and waiver

This Agreement constitutes the entire agreement between the parties on its subject matter. It may be varied only in writing signed by both parties. A failure to exercise a right is not a waiver of that right.

23. Governing law and jurisdiction

This Agreement is governed by Monegasque law. The courts of the Principality of Monaco have exclusive jurisdiction, after an attempt at amicable settlement of thirty days.

Schedule 1 – Prices

Item	Unit	Price EUR excl. VAT
Placement fee – deckhand / stewardess	placement	2,400.00
Placement fee – officer / engineer	placement	3,600.00
Travel arrangement and visa processing	crew member	462.50
Background screening	candidate	150.00

Schedule 2 – Contacts and bank details

Party	Contact	Telephone	E-mail
Supplier	Finance	+356 2138 4400	finance@crewlink.example
Customer	Crew department	+377 97 70 41 12	crew@azurmarine.example

Supplier's bank account: Valletta Merchant Bank, IBAN MT19 VALL 2201 3000 0000 4001 8776, BIC VALLMTMTXXX.

Signatures

Party	Name and function	Date
CrewLink Maritime Ltd	Director	01/04/2024
Azur Marine Services S.A.M.	Claire Martin, Finance Director	01/04/2024